REPORTABLE (109)

AMANDA GONDO
v
THE STATE

SUPREME COURT OF ZIMBABWE
GUVAVA JA, UCHENA JA & MWAYERA JA
HARARE: 29 MAY 2025

E. Mavuto, for the appellant

Ms P. A. Gutu, for the respondent

MWAYERA JA:

INTRODUCTION

1. This is an appeal against the judgment of the High Court ("court *a quo"),* wherein the court *a quo* dismissed the appellant's appeal in its entirety. After hearing submissions from counsel, this Court issued the following order:

> "The appeal be and is hereby dismissed.'

It indicated that the reasons for the judgment will be availed in due course. These are they.

FACTUAL BACKGROUND

2. The appellant, together with one Noah Gondo (her uncle), were charged with rape as defined in s 65(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the Code") in the Regional Magistrates Court ("the trial court"). They were both found guilty and sentenced to 15 years imprisonment each. Aggrieved, they both noted appeals in the court *a quo*. The salient facts of this case are as follows:

3. The appellant and her co-accused, one Noah Gondo, her uncle, appeared before the Regional Magistrates Court ("the trial court") facing a charge of rape. At the time of the commission of the crime, the appellant was 20 years old and Noah Gondo was 29 years old. The appellant and the complainant, who was aged 16 years old at the time, were friends. It was alleged that on 27 January 2024, at Nelson Village, Wedza, the appellant coerced the complainant into coming to their homestead, where her uncle was lying in wait in their kitchen. When the complainant entered the kitchen, the appellant closed the door behind her and secured it whilst inside.

4. It was alleged that Noah Gondo tripped the complainant and proceeded to have sexual intercourse with her without her consent. The complainant screamed, but her screams resulted in Noah Gondo covering the complainant's mouth with a blanket. After the deed, Noah Gondo threatened to kill her if she reported what had happened. The appellant was then ordered by her uncle to open the door so as to let the complainant out, which order was complied with.

5. The matter came to light on 3 February 2024, when the complainant visited her aunt to whom she narrated the whole story. This resulted in the arrest of both the appellant and her uncle, who were subsequently arraigned before the Magistrates court and pleaded not guilty to the charge.

6. To prove its case, the State led evidence from two witnesses. The first witness was the complainant, who testified that she was lured by the appellant to accompany her to her house. She adduced evidence to the effect that upon entering the kitchen, the appellant closed the door while they were both inside. The complainant testified that the appellant's uncle tripped her and proceeded to have sexual intercourse with her without her consent for more than an hour,

whilst covering her mouth with a blanket, to stop her from screaming. All this happened in the presence of the appellant.

7. The complainant testified that after the incident, she returned to her homestead and she did not reveal the incident to anyone for seven days, as she was afraid of her father, and feared for her mother who had health issues. Further, she pointed out that she did not reveal the incident because she had been threatened with death by the appellant's uncle. She also gave testimony to the effect that she could not go to school as she was having difficulties walking and was in pain after the ordeal. She subsequently visited her aunt on 3 February 2024, whereupon she recounted how she had been sexually molested by the appellant's uncle in the presence of the appellant.

8. The second witness was one Spiwe Mugombe, the complainant's aunt. She testified that the complainant visited her place of residence on 3 February 2024 and narrated the ordeal to her. Spiwe Mugombe then proceeded to report the incident to the police. Further, the State relied on the complainant's medical report which confirmed penetration as very likely.

9. In defence, the appellant claimed that she and the complainant were friends and that on the night in question, the complainant visited her from 20:00 hours. Further, the appellant submitted that the complainant left their house at around 0100 hours and that the following day, the complainant also came back to visit her and spent hours there before going back home.

10. She alleged that on 4 February 2024, she was called to the complainant's house where a virginity test was conducted on her by the complainant's aunt. She indicated that she was

blamed for allowing the complainant to be deflowered and that this resulted in her being assaulted. Further, she stated that her cellphone was taken by the complainant's father.

11. The appellant's uncle alleged that he was in a love relationship with the complainant since 25 December 2023. He testified that on the fateful day, the complainant visited his homestead and advised him that her parents were away and as such, they could spend the night alone. He further alleged that during their relationship, the complainant had lied to him about her age and stated that she was 19 years old. In addition, Noah Gondo denied having sexual intercourse with the complainant while the appellant secured the door. Noah Gondo indicated that the appellant left them in the kitchen and that he and the complainant spent the night together, until the complainant left at around 01:00 a.m.

12. The trial court held that both the complainant's and Spiwe Mugombe's evidence was not discredited in cross-examination by defence counsel. Further, that no evidence was led to discredit the complainant's version of events. In addition, the court held that the story portrayed by the appellant was not backed by evidence. The trial court made the finding that the appellant never made a report of assault or of the alleged virginity test. The trial court also held that there was no reason for the complainant to lie about the appellant, considering that they were close friends. Consequently, the trial court found the appellant guilty and sentenced her to fifteen years imprisonment.

PROCEEDINGS BEFORE THE COURT *A QUO*

13. Aggrieved by the decision of the trial court, the appellant and her uncle noted appeals to the court *a quo*. The appeals were against both conviction and sentence. The appellant and her co-accused raised 11 grounds of appeal regarding the conviction and two grounds of appeal

regarding the sentence. However, the court *a quo* found that two of the grounds were not traversed by the appellant and her co-accused in the heads of argument, hence they were deemed abandoned. Further, the first and second grounds of appeal were abandoned at the hearing.

14. The basis of the remaining grounds of appeal was that the trial court failed to take into account the demeanor and credibility of the complainant. The appellant further argued that the trial court, faced with two versions, erred in not assessing the credibility and reliability of all witnesses. The appellant also argued that the court erred by failing to take into account the fact that the complainant had misled Noah Gondo by lying about her age.

15. The court *a quo* held that the complainant's age was immaterial as the offence of rape was not only determined by the age of a person but by whether or not there was consent. The court *a quo* held that the trial court found that the appellant's defence was false, as in part of her testimony, she oscillated from between knowledge and ignorance of the relationship of the complainant and her uncle.

16. It further held that the trial court considered the demeanor of the complainant and was impressed by her demeanor. The court *a quo* also made the finding that the trial court assessed the credibility of all the witnesses, including the appellant and her co-accused, concluding that the complainant and her aunt were credible witnesses, while the appellant and her uncle were not credible. The court *a quo* then concluded that sitting as an appellate court, the trial court's factual findings grounding the conviction were not grossly unreasonable to the extent that no reasonable tribunal applying its senses to the same facts could have reached the same

conclusion. This resulted in the court *a quo* not interfering with the decision of the lower court and thus upholding its decision.

17. In respect of sentence, it held that there was no merit in the appeal. The court held that the conviction, as found by the trial court, was evidence of what it called 'a gang rape' comprising of the appellants. The court held that per s 65(4) of the Criminal Law Code as amended by Act Number 10 of 2023, perpetration of rape by two or more people is an aggravating factor, which justifies the trial court's decision to impose the mandatory minimum sentence of 15 years imprisonment. The court held that since the trial court did not go beyond the minimum mandatory sentence, there can be no scope for arguing that the sentence imposed on each appellant is manifestly harsh and excessive as to induce a sense of shock. The court *a quo* proceeded to dismiss the appeal in its entirety.

PROCEEDINGS BEFORE THIS COURT

18. Disgruntled by the decision of the court *a quo*, the appellant noted an appeal in this Court on the following grounds:

"GROUNDS OF APPEAL

1. The High Court misdirected itself in accepting the complaint of rape which was not voluntarily made to the aunt.
2. The High Court erred in accepting a rape complaint which was made after 6 days and the explanation given for the delay was not convincing.
3. The High Court further misdirected itself in taking a boxing ring approach in assessing the oral evidence of complainant and appellant on whether or not the latter was holding the door thereby assisting her uncle to commit rape.

4. The High Court erred in making a finding that the complainant was a credible witness when her testimony regarding appellant's participation was not clear and satisfactory in every material respect.
5. The High Court misdirected itself in rubber stamping the trial magistrate's finding that appellant was not a credible witness without giving reasons."

RELIEF SOUGHT

WHEREFORE, Appellant prays that the appeal be upheld and she be found not guilty and acquitted.

SUBMISSIONS BEFORE THIS COURT

19. Mr *Mavuto*, counsel for the appellant, argued that the complainant's report of rape was not made voluntarily. Counsel relied on the testimony of the appellant's co-accused, Noah Gondo, who stated at the trial that the appellant had been summoned to the complainant's residence, and upon her return, had informed him that she had been assaulted and her eyes were visibly red, suggesting that she had been assaulted. He argued that this evidence was not challenged by the respondent. Counsel further submitted that the appellant saw the complainant being chased through a maize field by her aunt. However, he conceded that he could not confirm whether the alleged assault occurred before or after the complaint of rape had already been made.
20. Counsel also contended that the complaint was not made timeously, as it was made six days after the alleged incident. He argued that the complainant had opportunities to report the rape earlier. For instance, when asked by her aunt why she was limping, the complainant did not disclose the incident but instead claimed her legs were painful. Additionally, she went to school the following day and failed to inform the school authorities.

21. Mr *Mavuto* attacked the credibility of the complainant, stating that she gave three inconsistent reasons for not reporting the rape to her parents. Counsel submitted that initially, the complainant claimed that she had been threatened by Noah Gondo, but later, stated that she was afraid of her father, and also that she refrained from telling her mother because she was concerned about the mother`s health, as she was a hypertensive patient. He further submitted that these shifting explanations undermined her credibility and that there was no evidence before the trial court linking the appellant to the commission of the rape.

22. In response, Ms *Gutu,* counsel for the respondent, submitted that there was no credible evidence on record to support the alleged assault as postulated by the appellant. She pointed out that the appellant's claim was controverted by the aunt during cross-examination, who denied having assaulted the complainant or the appellant. Moreover, counsel submitted that although the complainant had an interaction with the aunt three days after the incident, a reasonable explanation was advanced for the delay. The respondent argued that the complainant was operating under duress due to death threats made by Noah Gondo. She feared her father's reaction, and she was also concerned for her mother's health. Counsel stressed that these factors cumulatively had an effect on the timing of the report which the complainant gave to her aunt when the opportunity arose.

ISSUES FOR DETERMINATION

23. 1. Whether or not the court *a quo* erred in finding that the complaint of rape had satisfied all the requirements for admissibility of a complaint of rape.
    2. Whether or not the court *a quo* erred in holding that the complainant was a credible witness and the appellant was not a credible witness.

APPLICATION OF THE LAW TO THE FACTS

1. **Whether or not the court *a quo* erred in finding that the complaint for rape had satisfied all requirements for the admissibility of a complaint of rape.**

24. The appellant's position is that the court *a quo* erred when it accepted the complaint of rape, which was not made voluntarily. It was the appellant's submission that the complaint of rape was made after the complainant had been assaulted by her aunt, hence it was not voluntary. Further, the appellant made the allegation that the complainant had been assaulted by her father. It is trite that a complaint of rape must be made timeously so as to show consistency of the complainant's evidence and absence of consent. In the case of *The State* v *Mushamba* HH 562-23, at p 5, it was stated that:

> "In *S* v *Banana* 2000 (1) ZLR 607 (S) at p 616 the Supreme Court stated that a complaint of a sexual offence that is made soon after its occurrence is admissible to show the consistency of the complainant's evidence and the absence of consent. The complaint serves to rebut any suspicion that the complainant fabricated the allegation. GUBBAY CJ explained that: "The requirements for admissibility of a complaint are: (1) It must have been made voluntarily and not as a result of questions of a leading and inducing or intimidating nature. See *R v Petros* 1967 RLR 35 (GD) at 39G -H. (2) It must have been made without undue delay and at the earliest opportunity, in all the circumstances, to the first person to whom the complainant could reasonably be expected to make it. See *R v C* 1955 (4) SA 40 (N) at 40G - H; *S v Makanyanga* (*supra* at 242G - 243C)."

25. In view of the above authority, for a complaint of rape to be admissible, it must be made voluntarily with no coercion. This means that the complaint must not be made after the complainant is questioned and influenced to report the incident. The second aspect is that the complaint must be made on time, preferably as soon as possible after the incident, to the first person the complainant is reasonably expected to make the complaint to.

26. In this case, the complaint of rape was made after 7 days, to Spiwe Mugombe, the complainant's aunt. The facts of the matter should be looked at holistically. It is important to note that the trial court came to the finding that the complaint had been made without any

coercion. This, the Court finds to be true because it is the appellant who alleged that she had been assaulted and had her phone confiscated by the complainant's father. However, there was no evidence led in the trial court pointing to the fact that the appellant had indeed been assaulted. She never reported to the police that she had been given an involuntary virginity test. Even if she was assaulted she is not the complainant and there is no evidence to show that the assault had a bearing on complainant. The complainant denied that she had been assaulted, and her testimony in that regard was corroborated by her aunt, the second state witness. As such, the evidence that the complainant might have been assaulted, which led to an involuntary complaint, cannot be sustained.

27. From the evidence led on record, Spiwe Mugombe noticed that her niece was limping and asked why she was, to which, the complainant concocted a lie and stated that her legs were painful. Had she been coerced to make a complaint, this would have been a perfect opportunity to confide in her aunt. However, due to the death threat hanging over her life, fear of her father and concern for her mother's ill health the complainant did not say anything. When her school performance started to deteriorate because of the psychological effects of being sexually violated, the complainant chose to open up to a person she trusted. In that regard, the complaint was made voluntarily to her aunt.

28. It is important to look at whether the complaint was made without undue delay. In *S v Mushamba* HH 562-23, on p 6, the Court held as follows:

> "It however does not follow that where a complainant delayed in making a report about a sexual abuse perpetrated against her, the accused escapes liability on that basis alone. Each report must be analysed in the context of the circumstances under which it was made because there could be many legitimate reasons why survivors or victims of sexual violence may not immediately report the abuse."

Further in *Mudyambanje* v *The State* HH 49-17, the court also found as follows:

> "However, in determining whether or not these requirements have been satisfied, a trial magistrate should not take an armchair approach. The complainant's testimony should be assessed on the basis that there is no standard reaction to rape each case has to be considered on its own merits."

29. At the time that the crime was committed, the complainant was a minor. As such, it is plausible that she would be hesitant to divulge to anyone that she had been sexually violated. The complainant, coming from a rural background, was clearly afraid of her father; as such, she could not make the report to him. This is a reasonable reaction, considering the complainant's age and her unsophisticated rural background. In addition, the complainant was wary of her mother's health and was afraid that sharing such news with her would have fatal consequences. The complainant cannot also be blamed for not speaking up immediately about the rape considering her mother's reaction of telling her to go back to Noah Gondo, the predator. As such, in the circumstances the complainant's fear to confide in anyone about the act was understandable. In addition, the complainant had been threatened not to tell anyone about the incident; hence, it is reasonable why she did not immediately report what had happened as she feared for her life.

30. From the forgoing, it is clear to this Court that the complainant had a reasonable explanation for the delay in disclosing her ordeal to anyone. As a minor, she tried to deal with the issue in the manner she thought was good and made her safe. She finally gathered courage when the pressure of what happened to her weighed on her and she spoke up with no coercion to a person she is reasonably expected to report that is her aunt (father's sister). The delay of 6 days by a minor ravished under guard by a supposed friend in the circumstances was reasonable. Considering the totality of the circumstance the complainant made a voluntary and timeous

report to a person she was reasonably expected to report. To that extent therefore, the rape complaint met and satisfied all the requirements for its admissibility.

Whether or not the court *a quo* erred in holding that the complainant was a credible witness and the appellant was not a credible witness.

31. The appellant averred that the complainant was not a credible witness as she gave three inconsistent reasons for not reporting the rape to her parents. The appellant attacks the complainant's credibility on the basis that the complainant claimed that she had been threatened by the aggressor, was afraid of her father and that she feared reporting because her mother had hypertension. It is trite that the trial court is privy to the demeanor of the witnesses; as such, it is in a better position to conclude whether a witness is credible or not.

In the case of *Kereke* v *Maramwidze & Anor* SC 53/24, at p 29, it was stated that:

> "In our law, a primary court is required to assess the totality of the evidence bearing on the rape. This principle was articulated by this Court in *S* v *Gwaunza* SC 66/91 and *S* v *Kaseke* 1996 (1) ZLR 51 (S) at 55D thus:
>
> > 'In short, the court must, on the totality of the evidence adduced, consider whether the complainant is a credible witness. It is only if the court is satisfied that the complainant is a credible witness that it may proceed to look for some evidence, independent of her testimony, which shows, or tends to show, though such evidence by itself need not necessarily demonstrate, that the appellant was the offender - corroborative evidence: *S v Ngara* 1987 (1) ZLR 91 (S) at 97D.'"

The trial court, in its judgment, concluded that the complainant was credible. This is highlighted in the judgment of the court *a quo*. The court had this to say:

> "It thus is clear that the court considered the demeanour of the complainant. Not only that, but it was impressed with such demeanour. The court also assessed the credibility of all the witnesses, including the appellants. It concluded that the complainant and her aunt were credible witnesses. The court gave reasons for such conclusion. The probabilities were considered chiefly the first appellant's denial of the rape on the basis that he could not have committed it in the presence of and with the assistance of his own niece, the 20 year old second appellant. In sum the lower

> court assessed the evidence in its totality and concluded that the complainant and her aunt were not only credible witnesses but that the defences of the appellants had been proved to be beyond reasonable doubt false. (Underlining for emphasis.)

32. It is trite that an appellate court will not readily interfere with the findings of a trial court on credibility. In *S* v *Mlambo* 1994 (2) ZLR 410 (S) at 413 C, this Court held as follows:

> "The assessment of the credibility of a witness is par excellence the province of the trial court and ought not to be disregarded by an appellate court unless satisfied that it defies reason and common sense. A careful reading of Ndlovu's evidence, to which no accompanying adverse demeanor finding was made, does not persuade me that the magistrate's assessment was erroneous." See also *Nzira* v *The State* SC 23/06."

In the *Kereke* case (*supra*), on pp 26-28, the following pertinent sentiments were made:

> "It is trite that an appeal court is slow to interfere with either the factual findings of or the exercise of discretion by a trial court. See *ZINWA* v *Mwoyounotsva* 2015 (1) ZLR 935 (S) at 940F, *Hama* v *National Railways of Zimbabwe* 1996 (1) ZLR 664 (S) at 670C-D, *Barros & Anor* v *Chimphonda* 1999 (1) ZLR 58 (S) at 62G-63A where this Court stated that:
>
> > 'These grounds are firmly entrenched. It is not enough that the appellate court considers that if it had been in the position of the primary court, it would have taken a different course. It must appear that some error has been made in exercising the discretion. If the primary court acts upon a wrong principle, if it allows extraneous or irrelevant matters to guide or affect it, if it mistakes the facts, if it does not take into account relevant some consideration, then its determination should be reviewed and the appellate court may exercise its own discretion in substitution, provided always has the materials for so doing. In short, this court is not imbued with the same broad discretion as was enjoyed by the trial court.'"

33. In *casu*, the trial court made a finding that the complainant's evidence was credible. The court *a quo* further held that the trial court observed the complainant as she testified and was impressed with her demeanor. During trial, the trial court found the complainant to be a credible witness.

34. The complainant's credibility cannot be faulted on the basis that the complainant raised three points regarding why she failed to report the matter. It is clear from the record that the complainant was indeed afraid of her father that is why she did not want to tell anyone about the rape. Further, she feared that telling her mother would cause a flare in her hypertension. Lastly, the fact that she was threatened by the aggressor with death made her reluctant to share her ordeal. The appellant cannot, therefore, base her argument on the fact that the complainant produced three reasons why she did not disclose the incident earlier. The excuses proffered by the complainant actually make her a credible witness, as they all affirm the reasonable explanation and run concurrently affirming the reason for the delay in lodging a voluntary report. These factors were properly considered cumulatively by the trial court and confirmed by the court *a quo*.

35. The trial court, in its assessment, held as follows:

> "I am satisfied by the evidence on record the accused person is trying to escape to a lesser offence by alleging the sexual intercourse was by consent. Complainant's evidence is indeed credible she told the truth and sought help from her aunt. Second accused person is also a co – perpetrator as events show she participated in the premeditated offence and held her participation without regret to the end. She was close to the complainant and hence took advantage of her innocence to lure her to her uncle the sexual predator who savagely subdued complainant to his demands thereby having carnal knowledge of her against her will."

36. The appellant was implicated to have been at the crime scene by the testimony of the complainant. The trial court accepted the appellant's testimony that she was not aware of the complainant and Noah Gondo's love relationship. Its reasoning was that this corroborated the complainant's story that the uncle had sexual intercourse with her without her consent. The trial court found as follows:

> "Second accused was telling the truth when she said she was not aware of accused and complainant's relationship. This was because it never existed. Complainant

> was close to accused 2 who betrayed her in the end. She was always as she said with complainant going to the shops, washing clothes, fetching water which would be surprising as to how she would not know of a simple relationship between her uncle and complainant when she occupied all her time. Her short period with complainant would have exposed such a relationship. She also would not be dull enough to leave the two going to sleep after 11pm without raising questions on such conduct. It is clear that the story portrayed by both accused person (sic) never happened and is not supported by any evidence. Accused's story of being assaulted and her phone confiscate is also fictitious. She had no report made even for the assault or harassment including virginity testing. There is no such relationship which exists such that after two months neighbors test a 20 year old person of virginity. The issues of the details by police to report are just lies as this never happened. There clearly is no motive for the young person to lie or imagine such a situation and lie against a person she considered a friend. Accused persons also could not give a clear motive for complainant to lie given she is a simple rural teenager on concocting such a story against people she calls friends and neighbors is just far-fetched."

37. The trial court in *casu*, indicated why it disregarded the rest of the appellant's testimony when it accepted part of it. The court *a quo,* in dismissing the appeal that was before it, was of the view that the trial court had paid attention to the complainant's demeanor and its reasons were clear as to why it disregarded the appellant's testimony. In *State* v *Chikukwa* SC 75/20 at p 10 this Court held as follows:

> "In *Charangwa* v *The State* HH 664/15 the court emphasized the point that the judgment of a trial court must reflect the court's appraisal of the credibility of each witness stating what evidence was accepted or rejected and giving reasons for its decision. This is what the trial court precisely did and was confirmed by the court *a quo*."

38. In the present case the court *a quo* cannot be faulted for holding as it did. There was no reason for it to interfere with the findings of credibility made by the trial court. The trial court had good reason to make the finding that the appellant was not credible and that her story was false as she oscillated between two versions in one vein saying the complainant and her uncle were in a love relationship and in the other vein expressing ignorance of such a relationship. On the other hand there was no reason why the complainant would lie and implicate the appellant,

whom she considered a friend. There was no reason for her to conjure a story that the appellant held the door, when in fact she did not. The appellant's initial denial of the love relationship a relation between Noah Gondo and the complainant corroborated the complainant's testimony that such a relationship did not exist. In that regard, the trial court considered the totality of the evidence placed before it, observed the demeanor of the witnesses, and came to the conclusion that the appellant was guilty of the charge of rape. The court *aquo* correctly confirmed such findings by the trial court.

DISPOSITION

39. In the circumstances the court *a quo* therefore, cannot be faulted for confirming the findings of the trial Court which were anchored on evidence. It was slow to interfere with the findings of the trial court on the credibility of witnesses, a principle well established in our law. There was no misdirection on the part of the court *a quo,* hence, this Court cannot interfere with its findings. In that regard, the appeal has no merit; it ought to fail. It is for these reasons that this Court issued the order in para 1, dismissing the appeal.

GUVAVA JA : I agree

UCHENA JA : I agree

Maposa & Ndomene Legal Practitioners, appellant's legal practitioners.

National Prosecuting Authority, respondent's legal practitioners.